PRACTICE EXAM 21 / EXAM SET 03

Domain 7: Medical Law and Ethics

7 scored questions	4 answer choices per question	Answer key + explanations included

Instructions

Choose the single best answer (A, B, C, or D) for each question. Mark your responses before checking the answer key and detailed explanations at the end of this document. These practice questions are not official NHA examination items.

QUESTIONS

Q01 | Privacy Confidentiality and Information Release

SCENARIO An adult with decision-making capacity privately tells the medical assistant not to discuss today's visit with the patient's spouse. Later, the spouse asks the assistant what the clinician diagnosed. The patient remains available, has no guardian, and has not changed the instruction. No separate authorization, representative authority, safety exception, or legal requirement permits the disclosure.

Which response best respects the patient's confidentiality?

A. Share the diagnosis but withhold the details of the treatment plan.

B. Respect the patient's instruction and avoid disclosing the visit information to the spouse.

C. Share the information after confirming that the spouse pays the household's medical bills.

D. Delay the conversation until the patient leaves and then answer the spouse's question.

Q02 | Consent Patient Rights and Directives

SCENARIO A 13-year-old arrives with the child's mother for nonurgent wart removal. The clinic's designated reviewer has verified a current custody order granting the father sole authority to consent to this procedure. The reviewer has also confirmed that the mother has no authority to provide this consent and that no minor self-consent provision or emergency exception applies here. The father has not yet consented. The physician provides the procedure-specific risks, benefits, and alternatives discussion.

How should the assistant support the consent process for this visit?

A. Accept the mother's consent because she brought the child to the appointment.

B. Ask the child to sign because the procedure is scheduled and nonurgent.

C. Use the general registration signature as permission for the planned wart removal.

D. Arrange contact with the authorized parent for the physician's discussion and appropriate consent before proceeding.

Q03 | Scope Ethics and Mandatory Reporting

SCENARIO A parent asks a medical assistant to sign a school sports-clearance form in the physician's signature space before the physician leaves for the day. The required clinical examination has not occurred. The parent says the child is healthy and the school needs the form immediately. Clinic policy reserves the fitness determination and certification to an authorized clinician and prohibits staff from signing the clinician's name.

Which action maintains an accurate representation of the assistant's role?

A. Sign the physician's name and note that the parent reported the child is healthy.

B. Use the physician's signature stamp and arrange the examination for a later date.

C. Explain that an authorized clinician must evaluate and certify fitness, and arrange the appropriate visit.

D. Sign the assistant's own name in the physician's space and add the CCMA credential.

Q04 | Consent Patient Rights and Directives

SCENARIO An older adult with decision-making capacity is at a primary care visit for a new health concern. The chart contains a verified do-not-attempt-resuscitation order that the clinician has reviewed and identified as addressing resuscitation during cardiopulmonary arrest only. The patient asks, "Does this mean I must turn down treatment for today's problem?" The assistant may reinforce the clinician's explanation but may not change the order or make treatment decisions.

Which explanation appropriately distinguishes the order from the patient's other care choices?

A. "This order addresses resuscitation during arrest; your clinician can discuss treatment choices for today's problem."

B. "This order means you have already declined treatment for new health problems."

C. "This order transfers decisions about today's treatment to the relative listed as your emergency contact."

D. "This order must be removed from your chart before you can discuss treatment for today's problem."

Q05 | Privacy Confidentiality and Information Release

SCENARIO A clinic that is not a party to a lawsuit receives an attorney-issued subpoena requesting a patient's records. It is not accompanied by a court order, patient authorization, or documentation of the required notice or protective-order safeguards. No other disclosure basis has been established. Clinic policy requires staff to promptly forward legal requests to the privacy officer or legal reviewer, who determines the response and applicable deadlines.

How should the medical assistant handle the request?

A. Send the complete chart immediately because an attorney-issued subpoena is equivalent to a court order.

B. Promptly route the subpoena for designated review before releasing records and preserve the request and records.

C. Discard the subpoena because medical information can be released only with a patient's authorization.

D. Ask the attorney to promise confidentiality by telephone and then release the requested records.

Q06 | Scope Ethics and Mandatory Reporting

SCENARIO At a California outpatient clinic, the clinician suspects measles in a child with fever, rash, cough, and a recent known exposure. Infection-control measures are already in place. The clinic's current California reporting reference requires immediate telephone reporting of suspected measles to the local health department before laboratory confirmation. The assistant is trained and authorized to make the report under the clinician's direction. The parent objects to sharing the child's information, and test results are pending.

Which action fulfills the assigned reporting responsibility?

A. Wait for the laboratory result so the report contains a confirmed diagnosis.

B. Obtain a signed release from the parent before contacting the health department.

C. Send a routine electronic referral instead of making the required telephone report.

D. Make the required telephone report promptly under the clinician's direction without awaiting authorization or confirmation.

Q07 | Scope Ethics and Mandatory Reporting

SCENARIO A patient who uses a wheelchair arrives for a scheduled primary care examination and needs assistance transferring to the examination table. An accessible room, adjustable table, and appropriately trained staff are available for the appointment. A coworker suggests canceling because providing transfer assistance may take extra time. The patient wishes to keep the visit. Clinic policy requires equal access to care and use of available accessibility resources.

Which response best supports equitable care within the assistant's role?

A. Require the patient to return with a relative who can provide the transfer assistance.

B. Replace the examination with a telephone visit without consulting the patient or clinician.

C. Coordinate the available room and trained assistance, and raise the proposed cancellation with the supervisor.

D. Refer the patient elsewhere because wheelchair use makes the scheduled examination inconvenient.

ANSWER KEY & EXPLANATIONS

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01 B	02 D	03 C	04 A	05 B	06 D
07 C					

DETAILED EXPLANATIONS

Q01 | Correct answer: B

Respect the patient's instruction and avoid disclosing the visit information to the spouse.

The patient is available, has decision-making capacity, and has expressly objected to sharing this information with the spouse. Marriage or payment of household bills does not override that objection under the facts given. The assistant should respect the instruction and avoid even a brief diagnostic disclosure unless an appropriate basis is established.

Q02 | Correct answer: D

Arrange contact with the authorized parent for the physician's discussion and appropriate consent before proceeding.

The verified custody order and applicable rules in this case identify who may consent to this procedure. Neither accompanying the child nor signing registration paperwork establishes the missing procedure consent here. The assistant should help connect the authorized parent with the physician, who supplies the substantive explanation, rather than independently determine legal authority or proceed without appropriate consent.

Q03 | Correct answer: C

Explain that an authorized clinician must evaluate and certify fitness, and arrange the appropriate visit.

Certifying sports fitness requires the authorized clinician's determination, which has not been made. A parent's reassurance, a deadline, or access to a signature stamp does not authorize an assistant to create that certification or sign the physician's name. Adding a CCMA credential does not substitute for the clinician's required examination and certification.

Q04 | Correct answer: A

"This order addresses resuscitation during arrest; your clinician can discuss treatment choices for today's problem."

The verified order described in the scenario concerns resuscitation during cardiopulmonary arrest rather than a blanket refusal of other care. The patient retains the right to discuss, accept, or decline treatment for the current concern. The assistant may reinforce that distinction and connect the patient with the clinician without changing the order or choosing treatment.

Q05 | Correct answer: B

Promptly route the subpoena for designated review before releasing records and preserve the request and records.

An attorney-issued subpoena is not automatically equivalent to a court order, and the safeguards needed to support this disclosure have not been established. The designated reviewer should evaluate the request and response deadlines before records are released. HIPAA can permit legally supported disclosures without patient authorization, so the assistant should neither send the chart automatically nor discard the request.

Q06 | Correct answer: D

Make the required telephone report promptly under the clinician's direction without awaiting authorization or confirmation.

The reporting rule provided applies to suspected measles and requires a prompt telephone report before laboratory confirmation. HIPAA permits disclosures required by law without a separate patient authorization, so the parent's objection does not cancel this reporting duty. The assistant carries out the authorized reporting assignment rather than independently diagnosing measles or waiting for the tests.

Q07 | Correct answer: C

Coordinate the available room and trained assistance, and raise the proposed cancellation with the supervisor.

The clinic has the resources needed to provide the scheduled examination accessibly, and the assistant can coordinate them within the assigned role. Extra staff time alone does not justify excluding a patient because of a disability or requiring the patient to supply a relative. Changing the visit format without involving the patient or clinician also fails to address the available accommodation.

End of Practice Exam